

2017 M L D 1036

[Lahore]

Before Ayesha A. Malik and Jawad Hassan, JJ

DILAWAIZ ALI KHAN---Appellant

Versus

COMSATS INSTITUTE OF INFORMATION TECHNOLOGY and others---Respondents

Intra Court Appeal No.404 of 2015, decided on 16th March, 2017.

(a) COMSATS Institute of Information Technology Ordinance (XXXVIII of 2000)---

---S.18---COMSATS Undergraduate Degree Programs Regulations, 2006, Reglns. 18(c), 20, 21 & 33---Educational institution---Prospectus and regulations---Appellant did not secure required Cumulative Grade Point Average (CGPA) therefore, University did not allow him to continue his admission---Single Judge of High Court declined to interfere in order passed by the university---Validity---Students were bound to obey Prospectus and Regulations which could be changed or altered yearly basis---Matter revolved around Regulations framed by the University and each and every student had got admission after accepting Regulations of the institution---Regulations of university did not permit readmission or up scaling of CGPA---Concepts of compassion and hardship could be considered by High Court for providing relief to aggrieved party in terms of Art. 199 of the Constitution, only when there was room in relevant law to do so but not by breach of law and not by stultifying right accrued to opposite side and/or by enforcing a right which aggrieved party under the law had lost---Division Bench of High Court declined to interfere in order passed by the Single Judge of High Court---Intra-court appeal was dismissed in circumstances.

Talha Siddique v. Director COMSATS and others 2010 CLC 1084; Chairman, Board of Intermediate and Secondary Education, Bahawalpur v. Rizwan Rashid and 3 others 2005 SCMR 728; Faiqa Ali v. VC, Government College University Lahore 2010 MLD 103; Muhammad Ilyas v. Bahauddin Zakariya University, Multan and another 2005 SCMR 961; Waqas Zafar v. Baha-ud-Din Zakaria Univesrity 2010 CLC 999; Shafique Ahmad and others v. The Province of Punjab PLD 2004 SC 168 and Ali Yousaf and others v. Chairman Academic Dow Medical College, Karachi and others 2000 SCMR 1222 ref.

(b) Constitution of Pakistan---

---Art. 199---Constitutional petition---Plea of compassion and hardship---Scope---Concepts of compassion and hardship could be considered by High Court for providing relief to aggrieved party in terms of Art. 199 of the Constitution, only when there was room in relevant law to do so but not by breach of law and not by stultifying right accrued to opposite side and/or by enforcing a right which aggrieved party under the law had lost.

Ch. Muhammad Javed Arshad for Appellant.

Muhammad Waheed Akhtar Mian for Respondents.

Date of hearing: 16th March, 2017.

JUDGMENT

JAWAD HASSAN, J.---Through this appeal, the Appellant has called in question the order rendered in W.P. No.20645/2013 dated 12.02.2015 passed by the learned Single Judge (the "Impugned Order"), whereby the Constitutional Petition of the Appellant was dismissed being without any merit.

2. Learned counsel for the Appellant submitted that the COMSATS Institute of Information Technology is a public sector degree awarding institution established at the desire of The Commission on Science and Technology for Sustainable Development in the South vide COMSATS Institution of Information Technology Ordinance, 2000 (the "Ordinance"); that the Appellant was allowed admission in its four years Bachelor of Science in Electrical (Communication) Engineering programme starting from Spring 2008 consisting of 8 semesters, extendable upto 12 semesters; that under Section 18(2)(g) the Institution is authorized to frame Regulations for submission to the Board; that the impugned order has been passed without considering the Regulations Nos. 20 and 21 of the Respondent-Institution COMSATS Regulations Relating to Undergraduate Degree Programs, 2006 (the "Regulations") which allow him to repeat the courses in order to achieve CGPA 2.0; that the impugned order is against the judgments of the Hon'ble Supreme Court of Pakistan cited by the Appellant; that the learned Single Judge has failed to appreciate the fact that from the provisions, the favoring one was to be applied in the case of the Appellant; that the undertaking was given by the Appellant on the directions of the Respondents as such now they cannot be estopped by their words and conduct; that if the impugned order is not set aside and the Appellant is not given a chance, he would suffer an irreparable loss. In support of his contentions learned counsel has placed reliance on the case titled Talha Siddique v. Director COMSATS and others (2010 CLC 1084) and Chairman, Board of Intermediate and Secondary Education, Bahawalpur v. Rizwan Rashid and 3 others (2005 SCMR 728).

3. On the contrary learned counsel appearing on behalf of the Respondents vehemently controverted the contentions raised by the learned counsel for the Appellant and prayed for dismissal of the appeal on the grounds that the impugned order has rightly been passed as there remained nothing in favour of the Appellant when he was below 2.0 in grade and put on probation twice; that the Respondents are bound by their Rules and Regulations and cannot go beyond them.

4. We have heard the arguments of the learned counsel for the parties and perused the record.

5. From the perusal of record it reveals that the Appellant got admission in the Respondent-Institution in Bachelor of Science in Electrical (Communication) Engineering consisting of eight

(8) semesters. The Appellant was required to obtain 50% marks in each course and he obtained above 2.00 CGPA in the four semesters but subsequently his CGPA was less than 2.00, therefore, he was not allowed to join his studies in Fall 2012 semester. It is a settled law that the students are bound to obey the Prospectus and the Regulations which may be changed or altered yearly basis. The whole case revolves around the Regulations framed by the University and each and every student gets admission after accepting the Regulations of the Institution. Admittedly the Appellant got admission in the Respondent-University after giving consent to be dealt with in accordance with its Regulations. Undeniably, the Appellant was awarded second successive probation as he was twice earned "Dismissal Immediately" status before Fall 2012 semester and in such a situation Regulation 18(c) is applicable. From the bare perusal of the said Regulation reveals that a student already on probation shall automatically be dismissed if he/she attains a second successive probation at the end of the semester. Therefore, the Appellant was dismissed and there remained no discretion with the Officials of the Institution to re-admit the student. For the sake of brevity the said Regulation 18(c) is reproduced below and is as follows:--

"A student already on probation is automatically dismissed, if he/she attains a second successive probation at the end of semester".

6. Furthermore, Regulation 33(c) provides that if a student who is dismissed in terms of Section 18(c) and has already paid the next semester dues, shall be refunded such paid dues. The Appellant was bound to abide by the Regulations of the Institution and under the said Regulations he was dismissed. The Appellant cannot claim his readmission and continuation with his course as of right and cannot be granted by the Institution/University unless there exists any provision in the Regulations. In the instant case the Regulations of the Respondents do not permit readmission or up scaling CGPA. The concepts of compassion and hardship may be considered by the Courts for providing relief to an aggrieved party in terms of Article 199 of the Constitution, only when there was room in the relevant law to do so, but undoubtedly not by breach of law and moreso not by stultifying: the right accrued to the opposite side and/or by enforcing a right which the aggrieved party under the law had lost. In view of the referred facts and circumstances, the impugned order passed by learned Single Judge is unexceptionable.

We, therefore, agree with the finding of the Single Judge as this Court in *Faiqa Ali v. VC, Government College University, Lahore* (2010 MLD 103) held that the Higher Education Commission regulates the criteria of the students, which has declared that the students of the Universities are required CGPA for qualification for Bachelors 2.0 and Master students 2.50 respectively. From the perusal of above-said regulations it is clear that the students have to follow the regulations which have been passed by the Syndicate and according to the said criteria laid down in the said regulations all the petitioners were required to earn 2.50 CGPA for promotion in the next semester and if any of the students attains 1.50 to 2.50 CGPA he was to be put on probation. In such circumstances it is claimed by the University and the writ petitions do not deny that the students who were put on probation had failed to gain CGPA 2.50 and those students who fail to improve their CGPA in the next semester which they were studying provisionally and fail to attain CGPA 2.50 in those papers in the previous semester they had attained CGPA from 1.50 to 2.50 can be dropped, from the semester.

7. The learned counsel for the Respondent has rightly drawn the attention of this Court that the Appellant and other students were being dealt with according to the Regulations and they

were dropped when their CGPA was less than 2.00, but they never objected and the objection has been raised only when they had become unsuccessful to appear in the subsequent semester as they failed to attain CGPA 2.00 which is the requirement for appearance in the next semester examination. The learned counsel for Respondent has pointed out that it was in their knowledge that the Regulation has been made by the University, who had appeared in the examination under the said Regulation and now he is estoppel by his conduct to challenge the same. The judgments relied upon by the learned counsel for the Appellant do not support him as each and every case has its own facts and circumstances, therefore, the same are distinguishable from the case in hand.

8 Moreover, the Court in *Faiqa Ali case*, supra relied on the judgment of the Hon'ble Supreme Court of Pakistan in *Muhammad Ilyas v. Bahauddin Zakariya University, Multan* and another (2005 SCMR 961) in which it was held as under:--

"We have heard the learned counsel and have also gone through the relevant regulation. At the outset it may be noted that as far as the rules/regulations framed by the University Authorities for the purpose of conductive/regularizing examination etc. of University are concerned these are required to be interpreted by the University Authorities itself and Courts should avoid to interpret the same unless a case of grave injustice is not made out otherwise it would become difficult for University administration to run its internal affairs relating to examination, etc. Further, a perusal of Regulation 8(F) and its other parts clearly demonstrate that the petitioner 'has required to obtain (CGPA) independently in each semester for the purpose of promotion to the next semester. As it has been pointed out hereinabove that the petitioner did not obtain requisite (CGPA) in the 3rd semester i.e. 2.00 (CGPA), therefore. University Authorities in exercise of power conferred upon them under Regulation 8(F) rightly removed his name from the roll. The learned ICA Bench after examining the case of petitioner in depth reached to the conclusion that he was required to obtain 2.00 CGPA in the 3rd semester, therefore, his name was rightly removed from the roll of University as impugned judgment is just and legal, therefore, no interference is called for by this Court in exercise of jurisdiction under Article 185(3) of the Constitution of Islamic Republic of Pakistan".

9. Moreover, this Court in *Waqas Zafar v. Baha-ud-Din Zakaria University* (2010 CLC 999) held that the Respondents-University authorities are best judge of their own affairs. This court normally does not interfere in the internal affairs of the University. The statutes through which University came to existence has given power to its authorities to frame the regulation qua manners, mode, conduct, standard and regularization of examination from time to time. They have powers to frame the policy in this regard, this court while exercising the constitutional jurisdiction has to follow and implement the relevant regulation. It cannot substitute its opinion with the opinion of those who were actively involved in making such policy, merely on sympathetic considerations. There is no force in the arguments of the petitioner that he has been treated differently than other students. He along with other students, who failed to perform well and failed to obtain the requisite GPA and CGPA. They were dropped from the roll of the department in terms of the regulation 11(V) of the University in order to maintain the requisite standard of the education of the University. I do not agree with the learned counsel for the petitioner that petitioner should have been detained in third semester and should be asked to repeat the semester hence rule on which the petitioner is relying will not be applicable in his

case. He will be governed by the regulation 11(V) of the University Semester System. It is suffice to say that petitioner at the time of taking his admission was supposed to know the rule and regulations applicable to him duly notified, from time to time. The petitioner has no vested right to claim that examination be taken in a manner he likes or as per old regulation. Prospectus or regulation is subject to change or alteration yearly basis for which student, shall be bound to obey the same. Reliance is placed on "Shafique Ahmad and others v. The Province of Punjab" (PLD 2004 SC 168), "Ali Yousaf and others v. Chairman Academic Dow Medical College, Karachi and others" (2000 SCMR 1222). The University Authorities have powers to make their own regulations in order to achieve the high standard of education. The case of the petitioner was exactly similar to the case of Muhammad Illyas supra in which the name of the student was removed/dropped in the third semester. No interference was made by the apex court. The impugned action of dropping the petitioner from the roll of department is neither illegal nor discriminating or harsh and same has been taken according to the rules and regulations of the University. The petitioner is bound by these regulations, who has failed to make out his case of discrimination or unequal treatment by the University Authorities.

10. We fully support the findings of the learned Single Judge in holding that the Appellant due to his consecutive PB and DI status was rightly dismissed by the Institution in accordance with law and there was no room for the Respondents to allow him to repeat the examination or to improve his grade. Even otherwise, the Respondents cannot be compelled to act in contravention of their own laws.

11. In view of the referred facts and circumstances, there is no illegality or perversity in the impugned order which otherwise is apt and calls for no interference by us. We, therefore, fully agree with the findings of the learned Single judge which have been passed in consonance with the spirit of law.

12. The instant Intra Court Appeal, being devoid of any force, is hereby dismissed.

MH/D-4/L

Appeal dismissed.